

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PABLO NIVICELA,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. RAMON CABRAL,
(Shield No. 23531) sued in his individual and official
capacities,

Defendants.
----- X

Index. No.

Purchased _____

Plaintiff designates Kings County as the
place of trial

The basis of the venue is where the tort
arose and where plaintiffs reside

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 2, 2017



Steven E. Lynch, Esq.
Attorney for Plaintiff
The Law Offices of Steven E. Lynch
65 Broadway, Suite 747
New York, New York 10006
(Tel.) (212) 498-9494
(Fax) (212) 498-9320
steven@stevenelynych.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PABLO NIVICELA,

Index. No.

Plaintiff,

VERIFIED COMPLAINT

-against-

Basis of Venue occurrence of
incident: 39th Street & Fourth
Avenue Brooklyn, New York

THE CITY OF NEW YORK; P.O. RAMON CABRAL,
(Shield No. 23531) sued in his individual and official
capacities,

Defendants.

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PABLO NIVICELA, by his attorney, Steven E. Lynch, Esq., for his complaint alleges as
follows:

1. This is a civil rights action in which Plaintiff Pablo Nivicela seeks relief for the violation of his rights secured by 42 U.S.C. § 1983 and the United States Constitution.
2. Plaintiff's claims arise from an incident that occurred on or about August 5, 2014. During the incident, the City of New York, P.O. Ramon Cabral of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, unreasonable seizure, excessive force, and retaliation for protected speech.
3. Plaintiff seeks compensatory and punitive damages from the individual defendant, compensatory damages from the municipal defendant, declaratory relief, an award of costs, attorney's fees pursuant to 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. Venue is proper in the Supreme Court of the State New York, Kings County, because: the acts in question occurred in the State of New York, Kings County; the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County; and the amount in recovery exceeds the jurisdictional levels of all lower courts.

PARTIES

5. Plaintiff Pablo Nivicela is a Hispanic resident of the State of New York and currently resides in Kings County.

6. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. At all times alleged herein, defendant P.O. Ramon Cabral was a New York City Police Officer employed with the 72nd Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

8. The individual defendant is sued in his individual and official capacities.

STATEMENT OF FACTS

9. P.O. Ramon Cabral committed the following illegal acts against plaintiff.

10. On August 5, 2014, at approximately 8:00 a.m., at and in the vicinity of 39th Street and 4th Avenue in Brooklyn, New York, New York, defendant P.O. Cabral unlawfully seized plaintiff using excessive force.

11. Plaintiff was socializing approximately seven (7) other people prior to his arrest.

12. P.O. Ramon Cabral asked plaintiff for identification.

13. Plaintiff provided P.O. Cabral with identification.

14. P.O. Cabral argued with plaintiff's friend.

15. Plaintiff asked P.O. Cabral "You're Hispanic just like us, why are you treating us like this?"

16. A police officer, believed to be P.O. Cabral pushed plaintiff against a wall and threw plaintiff on the ground, damaging plaintiff's glasses, and injuring plaintiff's face, shoulder, forearm, and knee.

17. P.O. Cabral handcuffed and pepper sprayed plaintiff.

18. Subsequently, the plaintiff was treated at Lutheran Medical Center for corneal abrasions, among other injuries.

19. All criminal charges against plaintiff were dismissed.

GENERAL ALLEGATIONS

20. The individual defendant had no credible or objective reason to use force against plaintiff.

21. The individual defendant acted under pretense and color of state law and within the scope of his employment. Said acts by said defendant were beyond the scope of his jurisdiction, without authority or law, and in abuse of his powers, and said defendant acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

22. As a direct and proximate result of defendant's actions, plaintiff experienced personal injuries, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation

23. Plaintiff is entitled to receive punitive damages from the individual defendant because the individual defendant's actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM FOR RELIEF

*42 U.S.C. § 1983 - Fourth Amendment Violation for Excessive Force
(Against the Individual Officer Defendant)*

24. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

25. While in the course of his official duties and acting under color of law, the individual defendant intentionally used excessive physical force against plaintiff, including but not limited to: pushing plaintiff against a wall and throwing plaintiff on the ground, damaging plaintiff's glasses, and injuring plaintiff's face, shoulder, forearm, and knee and pepper spraying plaintiff while he was handcuffed.

26. The physical attack of the individual officer defendant on plaintiff was objectively unreasonable.

27. The individual officer defendant's use of excessive physical force caused injuries to the plaintiff, including but not limited to, emotional distress, bruising, abrasions, and pain to his face and body, and eye.

28. By virtue of the foregoing, the defendants deprived the plaintiff of his Fourth Amendment rights under the United States Constitution to be free from unreasonable seizures of his person and are liable to plaintiff under 42 U.S.C. §1983.

SECOND CLAIM FOR RELIEF*42 U.S.C. § 1983 - First Amendment Violation for Retaliation Against Protected Speech
(Against the Individual Officer Defendant)*

29. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

30. The individual officer defendant used excessive force against plaintiff, and the excessive force was motivated at least in part by plaintiff's protected activity.

31. Plaintiff was harmed as a direct result of this retaliation by the individual officer defendant.

THIRD CLAIM FOR RELIEF*Municipal Liability
(Against Defendant City)*

32. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

33. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeated misconduct by the same officers, same units, and same precincts. In the fiscal year of 2012, there were 2,004 tort cases commenced against the New York City Police Department, up from 1,425 tort cases commenced for the fiscal year of 2008.¹ The City of New York has paid at least \$80 million for torts against the New York City Police Department since the fiscal year of 2008, peaking in fiscal year of 2009 when it paid out

¹ Fiscal 2013 Preliminary Mayor's Management Report for the New York City Police

more than \$117 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

34. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

35. However, the City of New York has isolated NYPD officers like defendant police officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even

² “NYPD gives quite the payday; AP report reveals police have dolled out \$1B to resolve lawsuits,” by Associated Press Writers Colleen Long and Jennifer Peltz via Daily News wire Report, <http://www.nydailynews.com/new-york/nypd-payday-ap-report-reveals-police-dolled-1b-resolve-lawsuits-article-1.189671>, October 15, 2010 last visited on January 27, 2014.

substantial civil claims and police department action against officers.³ This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability.

36. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

37. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City’s deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by the plaintiff.

38. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure

³ Bob Hennelly’s WNYC report, “Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements” from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/>, last visited on January 27, 2014.

practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

39. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

40. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

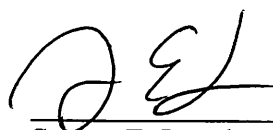
41. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective

action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

42. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, Plaintiff demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action.

Dated: New York, New York
March 2, 2017



Steven E. Lynch, Esq.
Attorney for Plaintiff
The Law Offices of Steven E. Lynch
65 Broadway, Suite 747
New York, New York 10006
(Tel.) (212) 498-9494
(Fax) (212) 498-9320
steven@stevenelynych.com

VERIFICATION

I, PABLO NIVICELA, state under the oath, that I am the deponent and plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.


PABLO NIVICELA

STATE OF NEW YORK)

: ss:

COUNTY OF KINGS)

On the 2nd day of March, 2016, before me personally came and appeared PABLO NIVICELA to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that he executed the same.


NOTARY PUBLIC

STEVEN E. LYNCH
NOTARY PUBLIC, State of New York
No. 02LY6261890
Qualified in Kings County
Commission Expires May 29, 2016/20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

PABLO NIVICELA,

Plaintiff,

**AFFIRMATION OF
TRANSLATION**

-against-

THE CITY OF NEW YORK; P.O. RAMON CABRAL,
(Shield No. 23531) sued in his individual and official
capacities,

Defendants.

----- X

I, STEVEN E. LYNCH, ESQ., an attorney admitted to practice in the courts of
the State of New York, affirm, pursuant to CPLR 2106, under penalty of perjury as
follows:

1. I am over 21 years of age and not a party to this proceeding.

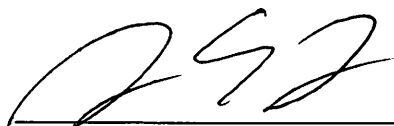
2. I am fluent in English and Spanish, both written and spoken.

3. I am a native English speaker, studied Spanish language and literature at
La Universidad de Salamanca in Salamanca, Spain, and received a B.A. degree in
Spanish from the Pennsylvania State University.

4. On March 2, 2017 I accurately translated aloud from English to Spanish
the foregoing complaint and verification to Pablo Nivicela, the plaintiff in the instant
matter.

5. The Petitioner communicated to me that he understood the complaint and
verification.

Dated: New York, New York
March 2, 2017


STEVEN E. LYNCH, ESQ.